

## 23NWCV03995 23NWCV03995

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-19

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Case Number: 23NWCV03995 Hearing Date: August 19, 2026 Dept: C

HWANG vs GENERAL MOTORS

LLC.

CASE

NO.: 23NWCV03995

HEARING: 8/19/26 @ 9:30 AM

#10

TENTATIVE RULING

Defendant General

Motors LLC.'s Motion to Strike or in the alternative to Tax Costs is GRANTED in part and DENIED in part. Plaintiff Grace

Lee Hwang's demand for \$1,404.62 is reduced by \$718.44 for a total of \$686.18 in costs.

Moving Party to give

NOTICE.

Defendant

General Motors LLC (Defendant) moves to strike, or in the alternative, tax costs pursuant to Code Civ. Proc. (CCP), §§ 1032, 1033.5, subds. (a), (c)(2)–(3).

BACKGROUND

This is a lemon law case. On October 14, 2025, Plaintiff Grace Lee Hwang (Plaintiff) accepted Defendant's 998 Offer. On December 15, 2025, the Court dismissed the Complaint and retained jurisdiction to enforce the judgment under CCP § 664.6. On June 12, 2026, Plaintiff filed a Motion for Attorney's Fees and a Memorandum of Costs. Defendant filed the instant motion to strike or tax costs on June 26, 2026. Plaintiff's Motion for Attorney's Fees is set for hearing on September 14, 2026.

## LEGAL STANDARD

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (CCP § 1032(b).)

The losing party may dispute any or all of the items in the prevailing party's memorandum of costs by a motion to strike or tax costs. (CRC 3.1700(b).) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Ibid.)

## DISCUSSION

### A. Timeliness

#### Prejudgment

costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (CCP § 1034(a).) Under Cal Rules of Ct., Rule 3.1700(a)(1), a prevailing party that claims costs must serve and file a memorandum of costs within the earliest of:

- 15 days after the clerk mails notice of entry of judgment or dismissal under CCP § 664.5;
- 15 days after a party serves written notice of entry of judgment or dismissal; or

- 180 days after entry of judgment.

Defendant

argues that Plaintiff's Memorandum of Costs should be stricken in its entirety as untimely. Defendant argues that when Plaintiff signed and accepted GM's 998 settlement offer, the time limit for Counsel to file this Memorandum of Costs started to run. (*Madrigal v. Hyundai Motor Am.* (2025) 17 Cal.5th 592, 605 [holding that "broad interpretation of the term 'judgment'" as used in section 998 "establishes that an accepted section 998 offer results in entry of a 'judgment' resulting from a settlement."]) Here, rather than take any immediate action after accepting the 998 offer on October 14, 2025, Counsel waited well beyond the 15-day period before filing its Memorandum of Costs. (Bowton Decl. ¶¶ 5-6.)

In opposition, Plaintiff argues that the Memorandum of Costs was filed timely because it was filed within 180 days of the dismissal pursuant to Code of Civil Procedure section 664.6 with the Court keeping jurisdiction to enforce the terms of the settlement. There was no entry of judgment and no service entry of judgment, so the 15-day requirement does not apply here.

The Court finds that Plaintiff's Memorandum of Costs is untimely because it was filed more than 15 days after the dismissal of this action. On December 15, 2025, the case was dismissed with the court retaining jurisdiction to enforce the settlement pursuant to CCP 664.6. On that date, the parties agreed to waive notice; therefore, the 15-day deadline prescribed by Cal Rules of Ct., Rule 3.1700(a)(1) was triggered as of December 15, 2025, and the underlying memorandum of costs is untimely. However, the requirements of the Rule do not appear to be jurisdictional. "[A] trial court has broad discretion in allowing relief from a late filing [of costs] where, as here, there is an absence of a showing of prejudice to the opposing party." (*Hoover Cmty. Hotel Dev. Corp. v. Thomson* (1985) 168 Cal.App.3d 485, 487-88. The Court will exercise its discretion to consider the issue of costs on the merits.

B. Contested Costs

ITEM 2: Jury Fees

Plaintiff seeks to recover \$150.00 in jury fees, even though this case never proceeded to trial. (See Memorandum of Costs (Worksheet) p. 1, line 2.a.) Under California law, jury fees are only recoverable when a trial occurs, as they are intended to cover expenses associated with empaneling a jury. (Perko's Enterprises Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 245.) Defendant argues since no jury was ever convened in this matter, there is no legal or factual basis for shifting these costs to Defendant.

In opposition Plaintiff argues that Plaintiff paid the \$150 jury fees to preserve her right to a jury trial as required by statute. This cost was necessary to the prosecution of the case, and it is irrelevant whether the case actually went to trial.

The Court finds that item 2 for \$150 jury fee is recoverable under CCP 1033.5(a)(l) and Civil Code 1794(d) given the cost served to preserve Plaintiff's right to a jury and was thus necessary to the litigation.

Accordingly, the motion to strike as to Item 2 is DENIED.

#### ITEM 14: Electronic Filing Fees

Filing fees are recoverable under CCP § 1033.5 (a)(1). However, without documentation and a showing of necessity, these items are not recoverable. (CCP, § 1033.5 (c)(2)–(3).)

Defendant seeks to tax \$473.21 in unsupported electronic filing fees. (See Memorandum of Costs (Worksheet), p. 3, line 14.) Defendant argues costs are only allowed if actually incurred and Counsel offers no support or explanation for these alleged costs. In opposition, Plaintiff includes the invoices from OneLegal as Exhibit A in the Declaration of M. Nicholas Nita.

The Court finds that item 14 for \$473.21 in costs is not recoverable. Although Plaintiff now offers documentation regarding the filing fee costs, Plaintiff fails to make a showing of necessity.

Accordingly, the motion to strike as to Item

14 is GRANTED in the amount of \$473.21.

#### ITEM 16: Other - Mediation

Section 1033.5 allows recovery only for items authorized by statute and “reasonably necessary to the conduct of the litigation.”

Defendant seeks to tax \$245.23 for “LA Court Connect OSC - AIM; Mediation.” (Memorandum of Costs (Worksheet) p. 3, line 16.) Defendant argues that Plaintiff provides no support for these claimed costs and therefore has failed to establish they were actually incurred in this case (as opposed to being the total owed for multiple cases mediated at the same time).

In opposition, Plaintiff argues that the \$245.23 for costs was incurred in hiring a special appearance attorney from “Attorney in Motion” to cover a court hearing (which actually saved Defendant money since they are not being charged at the managing partner rate of \$625) and for a small, pro-rated portion for the group mediation scheduled with Defendant.

The Court finds that item 16 for \$245.23 in costs is not recoverable. Plaintiff fails to provide documentation that establishes the costs were reasonably necessary. As to the \$95.23 fee for the hearing appearance of December 15, 2025, Plaintiff fails to demonstrate the need for an “Attorney in Motion,” and why that cost should be permitted under section 1033.5 as opposed to the filing of an attorney’s fees motion. As to the mediation expense, Plaintiff fails to demonstrate the mediation services related to this case. Indeed, the \$600 invoice that Plaintiff appears to attach in support relates to services for Forest of Money v. GM and Ky Jung Nam v. GM.

Accordingly, the motion to strike as to Item 13 is GRANTED in the amount of \$245.23.

#### Attorney’s Fees

Plaintiff now additionally seeks \$937.00 in attorney’s fees to oppose Defendant’s instant Motion to Tax Costs. Plaintiff relies on the general rule that Plaintiff as the prevailing party in this action and pursuant to the Song-Beverly Act is entitled to recoup all

reasonable attorney's fees incurred in the commencement and prosecution of this action, even when there is a contingency fee arrangement (Code Civ. Proc. § 1032(a)(4); Civ. Code § 1794(d); Civ. Code § 1780(e); see *Graham*, supra, 34 Cal.4th at 557; *Reveles*, supra, 57 Cal.App.4th 1139; *Hayward v. Ventura Volvo* (2003) 108 Cal.App.4th 509, 513.) Moreover, Plaintiff contends that the California Supreme Court has expressly ruled that prevailing parties who are entitled to recover their attorney's fees are also entitled to recover their fees for the time spent preparing fee applications such as this one. (*Serrano*, supra, 32 Cal.3d. at 631.) The Court finds that Plaintiff's request is unsupported by caselaw. Additionally, the mixed result demonstrates Defendant's motion was necessary.

Accordingly, Plaintiff's request for attorney's fees for opposing the instant motion is DENIED.